IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
FIRST DISTRICT

Case No. 1D25-XXX

KALEB BLAKE COMPANY, LLC, CONSTRUCTIVE SOLUTIONS, INC., and SLS CLAIMS INC.,
Petitioners,

v.

DANIEL NORMAN, ZION HOPE MISSIONARY BAPTIST CHURCH OF MIAMI, INC., MAURICE HOWARD, and CLAUDETTE FARMER,
Respondents.

L.T. Case No. 24000004SCAXMX; 23000115SCAXMX; 24000020SCAXMX;
24000017SCAXMX; and 24000012SCAXMX

PETITION FOR WRIT OF MANDAMUS

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PETITION FOR WRIT OF MANDAMUS

Pursuant to Fla. R. App. P. 9.100 (e), Petitioners, KALEB BLAKE COMPANY, LLC (“KALEB”), CONSTRUCTIVE SOLUTIONS, INC. (“CSI”), and SLS CLAIMS INC. (“SLS”), hereby petition the First District Court of Appeal for a Writ of Mandamus as to the Honorable Sheree H. Lancaster, County Court Judge in and for Gilchrist County, Florida and as pertaining to Respondents, DANIEL NORMAN (“NORMAN”), ZION HOPE MISSIONARY BAPTIST CHURCH OF MIAMI, INC. (“ZION”), MAURICE HOWARD (“HOWARD”), and CLAUDETTE FARMER (“FARMER”).

I. BASIS FOR INVOKING JURISDICTION

This is a Petition for this Court to issue a writ of mandamus directed to the Honorable Sheree H. Lancaster, county judge in Gilchrist County, Florida, requiring her to enter four Defaults, pursuant to Fla. Sm. Cl. R. 7.170(a), which states: “(a) Default. If the defendant does not appear at the scheduled time, the plaintiff is entitled to a default to be entered by either the judge or clerk. (emphasis supplied).

This Court has “jurisdiction to issue a writ of mandamus under Article V Section 4(b)(3) of the Florida Constitution and Fla. R. App. P. 9.030(b)(3).

II. STATEMENT OF THE CASE AND FACTS

This Petition is filed as a result of the Honorable Sheree H. Lancaster entering four (4) orders - benefitting all four (4) Respondents - by denying each Petitioner a default. The facts are not in dispute.

In each matter, Judge Lancaster's Orders concede (1) "The Defendant did not appear for the pre-Trial Conference", (2) "The Defendant was served by a private process server NOT APPROVED BY THIS COURT," and yet, (3) "The Plaintiff has not effectuated process of service on the Defendant (emphasis in original by Judge Lancaster).

Case #1: KALEB v. NORMAN

In KALEB v. NORMAN, KALEB filed a Motion For Default Pursuant To Fla. Sm. Cl. R. 7.170(A) And/or Motion To Stay Case Until First District Court Of Appeal Rules On Petition For A Writ Of Mandamus ("Motion for Default") on April, 10, 2024. (App. 34-42). The KALEB Motion for Default stated:

> Inasmuch as the Defendant (1) was served by an officer authorized by law and (2) failed to appear at pretrial, Plaintiff is entitled to a default pursuant to Fla. Sm. Cl. R. 7 .1 70(a) which states: "(a) Default. If the defendant does not appear at the scheduled time, the plaintiff is entitled to a default to be entered by either the judge or clerk (emphasis supplied)." Thus, Plaintiff demands entry of default by either the clerk or the judge.
>
> (App. 39).

On April 8, 2024, the trial court ruled:

1. The Defendant was served by a private process server NOT APPROVED BY THIS COURT. The Defendant did not appear for the Pre-Trial Conference, so voidable service could not be waived by the Defendant.
2. The Plaintiff has not effectuated process of service on the Defendant.

(emphasis in original). (App. 43-44).

The trial court dismissed the case without prejudice on December 10, 2024. (App. 50-52).

Case #2: CSI v. ZION

In CSI v. ZION, CSI filed a Motion For Default Pursuant To Fla. Sm. Cl. R. 7.170(A) And/or Motion To Stay Case Until First District Court Of Appeal Rules On Petition For A Writ Of Mandamus ("Motion for Default") on May 4, 2024. (App. 58-65). The CSI Motion for Default stated:

> Inasmuch as the Defendant (1) was served by an officer authorized by law and (2) failed to appear at pretrial, Plaintiff is entitled to a default pursuant to Fla. Sm. Cl. R. 7 .1 70(a) which states: "(a) Default. If the defendant does not appear at the scheduled time, the plaintiff is entitled to a default to be entered by either the judge or clerk (emphasis supplied)." Thus, Plaintiff demands entry of default by either the clerk or the judge.
>
> (App. 62).

On April 8, 2024, the trial court ruled:

1. The Defendant was served by a private process server NOT APPROVED BY THIS COURT. The Defendant did not appear for the Pre-Trial Conference, so voidable service could not be waived by the Defendant.
2. The Plaintiff has not effectuated process of service on the Defendant.

(emphasis in original). (App. 66-67).

The trial court dismissed the case without prejudice on December 10, 2024. (App. 72-74).

Case #3: SLS v. HOWARD

In SLS v. HOWARD, SLS filed a Motion For Default Pursuant To Fla. Sm. Cl. R. 7.170(A) And/or Motion To Stay Case Until First District Court Of

Appeal Rules On Petition For A Writ Of Mandamus (“Motion for Default”) on April 10, 2024. (App. 18-25). The SLS Motion for Default stated:

> Inasmuch as the Defendant (1) was served by an officer authorized by law and (2) failed to appear at pretrial, Plaintiff is entitled to a default pursuant to Fla. Sm. Cl. R. 7 .1 70(a) which states: “(a) Default. If the defendant does not appear at the scheduled time, the plaintiff is entitled to a default to be entered by either the judge or clerk (emphasis supplied).” Thus, Plaintiff demands entry of default by either the clerk or the judge.
>
> (App. 22).

On April 8, 2024, the trial court ruled:

1. The Defendant was served by a private process server NOT APPROVED BY THIS COURT. The Defendant did not appear for the Pre-Trial Conference, so voidable service could not be waived by the Defendant.
2. The Plaintiff has not effectuated process of service on the Defendant.

(emphasis in original). (App. 26-27).

The trial court dismissed the case without prejudice on December 3, 2024. (App. 32-33).

Case #4: SLS v. FARMER

In SLS v. FARMER, SLS filed a Motion For Default Pursuant To Fla. Sm. Cl. R. 7.170(A) And/or Motion To Stay Case Until First District Court Of Appeal Rules On Petition For A Writ Of Mandamus (“Motion for Default”) on April, 10, 2024. (App. 3-10). The SLS Motion for Default stated:

> Inasmuch as the Defendant (1) was served by an officer authorized by law and (2) failed to appear at pretrial, Plaintiff is entitled to a default pursuant to Fla. Sm. Cl. R. 7 .1 70(a) which states: “(a) Default. If the defendant does not appear at the scheduled time, the plaintiff is entitled to a default to be entered

by either the judge or clerk (emphasis supplied).” Thus, Plaintiff demands entry of default by either the clerk or the judge.

(App. 7).

On April 9, 2024, the trial court ruled:

1. The Defendant was served by a private process server NOT APPROVED BY THIS COURT. The Defendant did not appear for the Pre-Trial Conference, so voidable service could not be waived by the Defendant.
2. The Plaintiff has not effectuated process of service on the Defendant.

(emphasis in original). (App. 11-12).

The trial court dismissed the case without prejudice on December 10, 2024. (App. 15-17).

III. NATURE OF THE RELIEF SOUGHT

The nature of the relief sought in this Petition is a Writ of Mandamus compelling the Honorable Sheree H. Lancaster to enter a Default pursuant to Fla. Sm. Cl. R. 7.170(a) where (1) each Respondent was served with initial process by a certified Process Server - certified to serve process in each Respondent’s county, and (2) each Respondent failed to appear at the scheduled time of the pre-trial conference.

SUMMARY OF THE ARGUMENT

The lower court failed to follow the requirements of Fla. Sm. Cl. R. 7.170(a) by denying each Petitioner’s request for Default. Failure by each Respondent to appear at the scheduled time of the pre-trial conference after being served with initial process by a certified Process Server -

certified to serve process in each Respondent's county entitled each Petitioner to immediate default "by either the judge or clerk." Rule 7.170 - DEFAULT; JUDGMENT, Fla. Sm. Cl. R. 7.170.

The lower court had a ministerial duty to provide the remedies set forth in the rule, and did not have discretion or authority to consider any argument made by the trial court sua sponte.

ARGUMENT

I. EACH PETITIONER HAS A CLEAR LEGAL RIGHT TO THE PERFORMANCE OF THE DUTY AND THERE IS "NO OTHER LEGAL METHOD FOR REDRESSING THE WRONG OR OF OBTAINING THE RELIEF TO WHICH [PETITIONER] IS ENTITLED."

1. Mandamus compels the performance of a ministerial act that the public official has a clear legal duty to perform. *Pace v. Singletary*, 633 So. 2d 516, 517 (Fla. 1st DCA 1994). The petitioner must have a clear legal right to the performance of the duty with "no other legal method for redressing the wrong or of obtaining the relief to which [the petitioner] is entitled." *Id.* at 517; *Holland v. Wainwright*, 499 So. 2d 21 (Fla. 1st DCA 1986).

2. Here, all facts are undisputed. This means that a clear right is shown. There is an indisputable legal duty for either the clerk or the judge enter a default – as each Petitioner/Plaintiff is entitled to a default and lacks an adequate remedy at law. The entry of default by the clerk, or the court is

a ministerial act, and is not discretionary pursuant to the above. See *Mathews v. Crews*, 132 So. 3d 776 (Fla. 2014).

3. Mandamus lies to compel a person in an official capacity to perform an indisputable ministerial duty required by law. In *TBOM Mortg. Holding, LLC v. Brown*, 59 So. 3d 322 (Fla. 3d DCA 2011), the Third District issued a writ of mandamus in a situation almost identical to this case:

> A Case of Original Jurisdiction-Mandamus. SCHWARTZ, Senior Judge.
> Although the plaintiff mortgagee in this "routine" home foreclosure case clearly established its right to a default against the mortgagor, the trial court refused to enter one, giving only what must be called the spurious reason that the non-military affidavit was in some unspecified (because non-existent) way "insufficient." In fact and in law, the affidavit, which was in the universally accepted form, and was supported by evidence which clearly established that the defendant, who was personally served at his home in Miami-Dade County, was not in the military service, was legally impeccable.
> Since it is established and we repeat that the trial court is not free to refuse to follow the law because of some personal disinclination or otherwise, see *Republic Federal Bank, N.A. v. Doyle*, 19 So. 3d 1053, 1054 (Fla. 3d DCA 2009), and that it is, therefore, mandatorily required to enter the default sought in this case, see Fla. R. Civ. P. 1.500(b); *Comcoa, Inc. v. Coe*, 587 So. 2d 474, 477 (Fla. 3d DCA 1991) (granting mandamus when the trial court impermissibly refused to issue writ required by law; "in a statute such as this one, the term 'may,' which indeed ordinarily implies the exercise of choice or discretion, simply does not do so, and must, in contrast, be given a definition equivalent to the mandatory 'shall.'"), it is ordered that it expeditiously do so. Mandamus granted.
>
> *TBOM Mortg.*, 59 So. 3d at 323 (emphasis added).

4. Each Respondent/Defendant in each case was served with initial process in their respective Florida counties. See Affidavits of Service. (App. 12, 29, 46, and 68).

5. Statutes governing service of process are to be strictly construed and enforced.“ *Shurman v. Atl. Mortg. & Inv. Corp.*, 795 So. 2d 952, 954 (Fla. 2001).

6. Chapter 48 of the Florida Statutes govern service of process. Fla. Stat. § 48.021(2) provides in part:

> The sheriff of each county shall appoint as many process servers as he in good faith deems necessary and who meet the requirements herein, each of whom shall be at least 18 years of age and a permanent resident of the state. The sheriff shall prescribe an appropriate form for application for appointment, which form shall require the signatures of two character witnesses who personally know the applicant and will vouch for his good moral character.

7. Fla. Sm. Cl. R. 7.070 provides that Service of process “shall be effected as provided by Florida Rules of Civil Procedure 1.070(a)-(h).”

8. Fla. R. Civ. P. 1.070 provides in part:

> (b) Service — By Whom Made. Service of process may be made by an officer authorized by law to serve process but the court may appoint any competent person not interested in the action to serve the process.

9. This means that the Rules allow for service to be made either (1) by an officer authorized by law or (2) by any competent disinterested

person appointed by the court. Here, service was made by an officer authorized by law.

10. It appears the trial court is traveling under the belief that only a process server that it approves can properly serve Defendants in all other counties in the State of Florida, aside from Gilchrist County.

11. As shown above, this is not correct. The Rules allow for service to be made by an officer authorized by law. The only Process Server "approved" by Gilchrist County is the Sheriff– as reflected on the website for the Clerk of this Court located at https://www.gilchristclerk.com/small-claims

> Service of Process Information. Since you have filed a lawsuit against a person, company or corporation, the next step is having that person or company served with the lawsuit, you may elect one of the following for service: Certified Mail: Actual postal costs per defendant who must reside in Florida. Sheriff's Office: $40.00 per defendant for Florida residents (out of state Sheriff's departments may charge a different fee). You are required to have a money order or business check made payable to the Sheriff of the county where the resident resides. However, if process is served by the sheriff or a person appointed by him or by a certified process server, it must be served in the county where the sheriff appointed the process server. See Fla. Stat. § 48.021(3); *Cheshire v. Birenbaum*, 688 So. 2d 430 (Fla. 3d DCA 1997).

12. In each case, this means that process may be served (1) by the sheriff of each Respondent's County, or (2) by a person appointed by him/

her, or (3) by a certified Process Server, certified to serve process in each Respondent's County.

13. Pursuant to statute, special process servers are regulated by the sheriff of each county, and certified process servers are regulated by the chief judge of each county. See Fla. Stat. §§ 48.021, 48.27.

14. Fla. Stat. § 48.27(2), effective July 1, 2009, provides that the addition of a person's name to the list of certified process servers authorizes him/her to "serve initial nonenforceable civil process on a person found within the circuit where the process server is certified when a civil action has been filed against such person in the circuit court or in a county court in the state (emphasis added)." *Id.*

II. EACH PETITIONER WAS ENTITLED TO A DEFAULT AND THE COURT HAD A MINISTERIAL DUTY TO ENTER SAME BECAUSE EACH RESPONDENT/DEFENDANT WAS SERVED BY AN OFFICER AUTHORIZED BY LAW

15. In this case, each Respondent/Defendant was served by an officer authorized by law - a certified Process Server in good standing in each Respondent's County and in the judicial circuit for each Respondent's County. This was verified by the following signed statement and affidavit on the Return of Service on file with this Court's docket:

> I certify that I am over the age of 18, have no interest in the above action, Under penalty of perjury, I declare that I have read the foregoing and that the facts stated in it are true, that I am a Certified Process Server in good standing in the judicial circuit in which the process was served in the county in which

this defendant/witness was served. Pursuant to FS 92.525(2) and 28 USC Section 1746, no notary is required.

(App. 12, 29, 46, and 68).

III. EACH PETITIONER HAS NO ADEQUATE REMEDY OF LAW

16. "Mandamus is a common law remedy used to enforce an established legal right by compelling a person in an official capacity to perform an indisputable ministerial duty required by law." *Town of Manalapan v. Rechler*, 674 So. 2d 789, 790 (Fla. 4th DCA 1996) (citing *Solomon v. Sanitarians' Registration Ed.*, 155 So. 2d 353 (Fla. 1963)). An act is deemed ministerial when "there is no room for the exercise of discretion." *Id.*

17. The Honorable Sheree H. Lancaster had a ministerial duty to provide the remedies set forth in the Rule, and did not have discretion to deny default because each Respondent/Defendant was served by a private process server whom she did not approve.

18. Upon the showing that (1) each Respondent/Defendant in each case was served with initial process in their respective Florida counties (See Affidavits of Service. (App. 12, 29, 46, and 68)), and (2) each Respondent/Defendant failed to appear for the pre-trial conference, the Honorable Sheree H. Lancaster had a ministerial duty to provide the remedies set forth in Fla. Sm. Cl. R. 7.170(a).

19. The failure by the Honorable Sheree H. Lancaster to abide by the Rule and provide each Petitioner with the remedies set forth set forth in Fla. Sm. Cl. R. 7.170(a) leaves each Petitioner no adequate remedy at law.

20. Each Petitioner has no other means to force compliance with the law but to petition this Court for a writ of mandamus requiring the Honorable Sheree H. Lancaster to enter an immediate default either by the court or the clerk in accordance with Fla. Sm. Cl. R. 7.170(a).

WHEREFORE, based on the foregoing, this Court should issue a writ of mandamus to correct these errors, with such writ of mandamus directing the Honorable Sheree H. Lancaster to enter an immediate default either by the court or the clerk in accordance with Fla. Sm. Cl. R. 7.170(a).

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was electronically filed with the Clerk of the Court through the e-portal, pursuant to Fla. R. Jud. Admin. 2.516, and served via e-mail and U.S. Mail on Respondents listed below on this 17th day of March 2025 to:

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CERTIFICATE OF COMPLIANCE

I certify that this document complies with the font requirements of Florida Rule of Appellate Procedure 9.045(b) (Arial 14-point) and with the word count limit of the applicable rule, and that it contains _____ words, excluding the caption, cover page, table of contents, table of citations, certificate of compliance, certificate of service and signature block, as Rule 9.045(e) provides.

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